

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

In sum, the demurrer is sustained with leave to amend as to the second, third, fourth, and fifth causes of action. Plaintiffs shall file and serve an amended complaint on or before October 5, 2026.

Defendant Granlibakken Management Company, Ltd.'s Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is denied as moot in light of the court's ruling sustaining the demurrer with leave to amend.

10. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to compel initial special interrogatories, motion to compel initial requests for production of documents, and motion to deem requests for admissions admitted are continued to **November 12, 2026, at 8:30 a.m. in Department 3.**

11. S-CV-0057471 916 FLOORS v. TESLA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Defendant's request for judicial notice is granted.

Ruling on Motion

Defendant moves to compel plaintiffs to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)